

tressoria & tondeantur, quæ quidem si quarto invenient', tunc amputentur eis superlabia, ne de cætero concupiscant ad libidinem. This being the law, it appears, that the report of the said book of 7 E. 3. 23, 24. is so obscure and imperfect, that much of the substance of the matter ought to be supplied by intendment.

And the Chief Justice in the conclusion of his argument observed, that all the cases in which before there was diversity of opinions betwixt this Court and the Court of King's Bench, are now unanimously resolved. 1. That the general declaration in an action upon the case *quod cum indebitat' fuit* in such a sum, *sup' se assumpsit*, without shewing the cause of the debt, is insufficient (I). 2. That a particular declaration in such case shewing the cause of the debt, although it appears that the plaintiff may have an action of debt, well lies, as it was resolved in *Slade's case* (K). 3. That for an *assump'* of the testator, &c. to pay a debt or duty, an action upon the case lies against the executors, &c. as it was adjudged [77 b] in *Pinchon's case*, in the Ninth Part of my Reports (L). 4. This case of the jurisdiction of the Marshalsea is not adjudged by both Courts, *sc.* in the case of the said Jeremy Gray in the King's Bench, and in the case at Bar in this Court; against which judgments there is no opinion in any of our books, but as appears before, many concurring in *terminis* with them in all the points now resolved (M). So that our successors, as I believe, may take up the saying of the prince of poets :

*Haud unquam neque concio nos neque curia dictis
Audivit pugnare, animo sed semper eodem
Et sentire eadem, atque eadem decernere vellet.*

(I) Acc. Godb. 186. Doctr. pl. 20. *Wollaston v. Webb*, Hob. 18. *Jansen v. Colloman*, 1 Roll. Rep. 396. And this omission may be taken advantage of after verdict, by motion in arrest of judgment. *Holme v. Lucas*, Cro. Car. 6. *Foster v. Smith*, Cro. Car. 31. *Mayor v. Hare*, Cro. Jac. 642. *Wise v. Wise*, 2 Lev. 152. Or by writ of error. *Woodford v. Deacon*, Cro. Jac. 206. *Buckingham v. Costendine*, ib. 214. *Barker v. Barker*, Palm. 171. *Lydney v. Hemmerse*, 1 Bulstr. 67. But it is sufficient if the declaration state generally, that the defendant was indebted for divers wares sold, or for such like contract. *Woodford v. Deacon*, *ubi. sup.* *Bellinger v. Gardiner*, 1 Roll. Rep. 24. Jenk. Cent. 293.

So the plaintiff may declare generally for so much money expended, had and received, &c. *Rooke v. Rooke*, Cro. Jac. 245. *Babington v. Lambert*, Moore 854. For work and labour, *Hibbert v. Courthope*, Carth. 276. For the agistment of cattle in the plaintiff's ground. *Gardiner v. Bellingham*, Hob. 5. For a premium upon a policy of assurance upon such a ship. *Fowke v. Pinsacke*, 2 Lev. 153. Upon account stated. *Homes v. Savill*, Cro. Car. 116. On a foreign judgment without stating the cause of action on which the judgment proceeded. *Crawford v. Whettall*. *Plaistow v. Van Uxem*, note (1) to *Walker v. Witter*, Doug. 4. Or for money had and received without stating for what cause it was had and received. *Rables v. Sikes*, 22 Car. 2. cited Selw. N. P. tit. Assumpsit. So also a general *indebitatus assumpsit* will lie for copyhold fines without alleging any custom to pay a fine or how it was assessed, &c. *Whitfield v. Hunt* cited note † 155. *Grant v. Astle*, Dougl. 627. b. and *vid.* Bac. Ab. Assumpsit F. Where the debt is but a conveyance to the action, the general allegation *quod cum* such a one *indebitatus fuit*, without shewing how he was indebted is sufficient, as where the action is brought upon a collateral consideration, as forbearance to sue another, the cause of the debt need not be shewn. *Theme v. Fuller*, Cro. Jac. 396. *Austin v. Bewley*, ib. 548. *Linghen v. Broughton*, 1 Roll. Rep. 379. S. C. [3 Bulstr. 206. Moor. 853].

(K) *Vid.* note (B) *Slade's case*, 4 Co. 93. b.

(L) *Vid.* *Pinchon's case*, 9 Co. 86 b.

(M) There is also a palace Court to be holden before the Steward of the household, and Knight Marshal, and the Steward of his Court or deputy, with jurisdiction to hold pleas of all personal actions whatsoever, which shall arise between any parties within 12 miles of the palace at Whitehall. This Court was created by letters patent, 6 Car. 1. *Vul. Anon.* Salk. 439. *Inman v. Batten*, 1 Sid. 180. 3 Black. Comm. 16. and the references *ante* note (B).